

(Presidential Recordings Act), 88 Stat. 1695, note following 44 U. S. C. § 2107 (1970 ed., Supp. V),⁵ and the duty thereunder of the Administrator of General Services (Administrator) to submit to Congress regulations governing access to Presidential tapes in general. Under the proposed regulations then before Congress,⁶ public distribution of copies would be delayed for 4½ years. Although Judge Sirica doubted that the Act covered the copies at issue here, he viewed the proposed regulations as suggesting that immediate release was not of overriding importance. 397 F. Supp., at 189.

The Court of Appeals reversed. *United States v. Mitchell*, 179 U. S. App. D. C. 293, 551 F. 2d 1252 (1976). It stressed the importance of the common-law privilege to inspect and copy judicial records and assigned to petitioner the burden of proving that justice required limitations on the privilege. In the court's view, the mere possibility of prejudice to defendants' rights in the event of a retrial did not outweigh the public's right of access. *Id.*, at 302-304, 551 F. 2d, at 1261-1263. The court concluded that the District Court had "abused its discretion in allowing those diminished interests in confidentiality to interfere with the public's right to inspect and copy the tapes." *Id.*, at 302, 551 F. 2d, at 1261. It remanded for the development of a plan of release, but noted—in apparent contrast to the admonitions of Judge Gessell—that the "court's power to control the uses to which the tapes are put *once released* . . . is sharply limited by the First Amendment." *Id.*, at 304 n. 52, 551 F. 2d, at 1263 n. 52 (emphasis in original). We granted certiorari to review this holding that the common-law right of access to judicial records requires the District Court to release the tapes in its custody.

⁵ For a detailed discussion of the terms and validity of the Act, see *Nixon v. Administrator of General Services*, 433 U.S. 425 (1977).

⁶ 40 Fed. Reg. 2670 (1975). Those regulations ultimately were disapproved. S. Res. 244, 94th Cong., 1st Sess. (1975), 121 Cong. Rec. 28609-28614 (1975). See also n. 16, *infra*.

II

Both petitioner and respondents acknowledge the existence of a common-law right of access to judicial records, but they differ sharply over its scope and the circumstances warranting restrictions of it. An infrequent subject of litigation, its contours have not been delineated with any precision. Indeed, no case directly in point—that is, addressing the applicability of the common-law right to exhibits subpoenaed from third parties—has been cited or discovered.

A

It is clear that the courts of this country recognize a general right to inspect and copy public records and documents,⁷ including judicial records and documents.⁸ In contrast to the English practice, see, *e. g.*, *Browne v. Cumming*, 10 B. & C. 70, 109 Eng. Rep. 377 (K. B. 1829), American decisions generally do not condition enforcement of this right on a proprietary interest in the document or upon a need for it as evidence in a lawsuit. The interest necessary to support the issuance

⁷ See, *e. g.*, *McCoy v. Providence Journal Co.*, 190 F. 2d 760, 765–766 (CA1), cert. denied, 342 U. S. 894 (1951); *Fayette County v. Martin*, 279 Ky. 387, 395–396, 130 S. W. 2d 838, 843 (1939); *Nowack v. Auditor General*, 243 Mich. 200, 203–205, 219 N. W. 749, 750 (1928); *In re Egan*, 205 N. Y. 147, 154–155, 98 N. E. 467, 469 (1912); *State ex rel. Nevada Title Guaranty & Trust Co. v. Grimes*, 29 Nev. 50, 82–86, 84 P. 1061, 1072–1074 (1906); *Brewer v. Watson*, 71 Ala. 299, 303–306 (1882); *People ex rel. Gibson v. Peller*, 34 Ill. App. 2d 372, 374–375, 181 N. E. 2d 376, 378 (1962). In many jurisdictions this right has been recognized or expanded by statute. See, *e. g.*, Ill. Rev. Stat., ch. 116, § 43.7 (1975).

⁸ See, *e. g.*, *Sloan Filter Co. v. El Paso Reduction Co.*, 117 F. 504 (CC Colo. 1902); *In re Sackett*, 30 C. C. P. A. 1214 (Pat.), 136 F. 2d 248 (1943); *C. v. C.*, 320 A. 2d 717, 724–727 (Del. 1974); *State ex rel. Williston Herald, Inc. v. O'Connell*, 151 N. W. 2d 758, 762–763 (N. D. 1967). See also *Ex parte Uppercu*, 239 U. S. 435 (1915). This common-law right has been recognized in the courts of the District of Columbia since at least 1894. *Ex parte Drawbaugh*, 2 App. D. C. 404 (1894). See also *United States v. Burka*, 289 A. 2d 376 (D. C. App. 1972).

of a writ compelling access has been found, for example, in the citizen's desire to keep a watchful eye on the workings of public agencies, see, *e. g.*, *State ex rel. Colscott v. King*, 154 Ind. 621, 621-627, 57 N. E. 535, 536-538 (1900); *State ex rel. Ferry v. Williams*, 41 N. J. L. 332, 336-339 (1879), and in a newspaper publisher's intention to publish information concerning the operation of government, see, *e. g.*, *State ex rel. Youmans v. Owens*, 28 Wis. 2d 672, 677, 137 N. W. 2d 470, 472 (1965), modified on other grounds, 28 Wis. 2d 685a, 139 N. W. 2d 241 (1966). But see *Burton v. Reynolds*, 110 Mich. 354, 68 N. W. 217 (1896).

It is uncontested, however, that the right to inspect and copy judicial records is not absolute. Every court has supervisory power over its own records and files, and access has been denied where court files might have become a vehicle for improper purposes. For example, the common-law right of inspection has bowed before the power of a court to insure that its records are not "used to gratify private spite or promote public scandal" through the publication of "the painful and sometimes disgusting details of a divorce case." *In re Caswell*, 18 R. I. 835, 836, 29 A. 259 (1893). Accord, *e. g.*, *C. v. C.*, 320 A. 2d 717, 723, 727 (Del. 1974). See also *King v. King*, 25 Wyo. 275, 168 P. 730 (1917). Similarly, courts have refused to permit their files to serve as reservoirs of libelous statements for press consumption, *Park v. Detroit Free Press Co.*, 72 Mich. 560, 568, 40 N. W. 731, 734-735 (1888); see *Cowley v. Pulsifer*, 137 Mass. 392, 395 (1884) (per Holmes, J.); *Munzer v. Blaisdell*, 268 App. Div. 9, 11, 48 N. Y. S. 2d 355, 356 (1944); see also *Sanford v. Boston Herald-Traveler Corp.*, 318 Mass. 156, 158, 61 N. E. 2d 5, 6 (1945), or as sources of business information that might harm a litigant's competitive standing, see, *e. g.*, *Schmedding v. May*, 85 Mich. 1, 5-6, 48 N. W. 201, 202 (1891); *Flexmir, Inc. v. Herman*, 40 A. 2d 799, 800 (N. J. Ch. 1945).

It is difficult to distill from the relatively few judicial